

Dear ECCHR / DIMR intake team,

I am a German citizen, and I attach a structural-case brief concerning the Federal Foreign Office's automated case-management system ("FACIL"), which by the authority's own written admission closes citizen submissions "unread."

The brief asks whether this content-blind design is compatible with Art. 1(3) Basic Law, the administration's duty of diligent and objective handling, and the principle of proportionality; two human-rights submissions — one concerning a person now deceased — illustrate the kind of signal that was closed unread.

Domestic remedies are already in motion: a narrowly framed Verpflichtungsklage on the FACIL metadata is pending before the Verwaltungsgericht Berlin (Az. 2 K 202/26; interim relief application Az. 2 L 201/26), a complaint is pending with the BfDI (ref. DI3-722/002 II#0517), and a request under Art. 15 GDPR is pending. The complete documented file is available under confidentiality.

I would welcome your assessment of whether this constellation is suitable for strategic litigation on automated decision-making in public administration.

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